

CHANGE OF NAME OR SEX

HOW DO I CHANGE MY NAME OR LEGAL SEX?

FOR YOURSELF:

Fill out the *Petition for Change of Name / Sex* and *Judgment for Change of Name/Sex* forms for adults. Choose the options that apply to you (name, sex, or both). You are the Petitioner.

FOR A MINOR CHILD: (You must be a parent, legal guardian, or legal representative for the child)

Fill out the *Petition for Change of Name / Sex* and *Judgment for Change of Name/Sex* forms for minors. Choose the options that apply (name, sex, or both). You are the Petitioner.

If the *Petition* is for a name change for a minor child, then after you file your *Petition* and get a case number, you must send written notice to:

- all legal guardians
- the other parent (if you are a parent) *unless* the child has not lived with the other parent *and* the other parent does not contribute (and has not tried to contribute) to the support of the child
- both parents (if you are not a parent)

After you send notice, complete and file the *Declaration of Notice* form with the court

WHERE DO I FILE?

Name Change – If you are filing for yourself, file in the circuit court for the county where you live. If you are filing for a minor child, file in the county where the child lives.

Sex Change – You can file in any circuit court in Oregon. If you are also asking for a name change, you can file for both at the same time in any circuit court in Oregon.

All records of legal sex change petitions, including changes to both sex and name, are confidential.

Go to www.courts.oregon.gov/courts/Pages/default.aspx for the location and address of each circuit court in the state. BE SURE TO FILL IN THE COUNTY NAME AT THE TOP OF THE PAGE!

HOW MUCH DOES IT COST TO FILE?

Go to <http://www.courts.oregon.gov/Pages/fees.aspx> for the filing fee

DO I HAVE TO GO TO COURT AFTER I FILE?

Not unless the court tells you to or sends you a hearing notice. In some situations, a judge may want to talk to you or to the other parent if the *Petition* is for a minor child.

WHAT HAPPENS NEXT?

The court will enter the judgment into the court's records (called the Register of Actions). The judgment is effective once it's entered. The court will send you a *Notice of Entry of Judgment*. If you want a copy of the Judgment for yourself, call the court to find out how to get one.

NOTE: The court will not send the judgment to any other agencies or recipients. If you want your (or your child's) birth certificate, driver's license, Social Security card, or any other record changed, you must provide a copy of the signed Judgment to each provider according to their requirements.

DO I NEED A LAWYER?

You do not need a lawyer to file for a change of name or sex. If you have questions about how the law works or what other issues may arise from a name or sex change, you may want to talk to a lawyer. Court staff cannot give you legal advice. If you need help finding a lawyer, call the Oregon State Bar's Lawyer Referral Service at 503.684.3763 or 800.452.7636.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

In the Matter of:

Case No: _____

PETITION FOR CHANGE OF

☐ **NAME** ☐ **SEX**

Petitioner (current name)

Adult

I am the Petitioner. I am at least 18 years old or I have been emancipated by court order. I ask the court for a judgment (*check all that apply*):

☐ changing my name (*use complete names. First, Middle, Last*)

from: _____

to: _____//_____//_____

First

Middle

Last

☐ changing my legal sex

to: ☐ male ☐ female ☐ nonbinary

I have undergone surgical, hormonal, or other treatment appropriate to me for the purpose of affirming my gender identity

Public Interest (*check all that apply in Oregon or any other state*)

For any boxes you mark, explain, including the state and case numbers if available

☐ I owe child support arrears or am currently ordered to pay child support _____

☐ I have a protective order, stalking order, or restraining order in effect against me

☐ I am currently on probation, parole, or under post-prison supervision _____

☐ I am required to register as a sex offender _____

☐ I have formerly used the following names (*include all names you have used legally or by custom*)

☐ I ask that this record be SEALED by the court because I am a participant in the Address Confidentiality Program under ORS 192.826

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Date

Signature

Email

Name (printed) (current name)

Address City, State, ZIP Phone

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

In the Matter of:

Case No: _____

Petitioner (*current name*)

GENERAL JUDGMENT RE:
CHANGE OF ☐ **NAME** ☐ **SEX**
Adult

The court finds under ORS 33.410/33.460 that the requested identity record changes are not against the public interest

The court orders, based on the application by Petitioner, the following:

☐ Petitioner's name is changed: (*use complete names, First, Middle, Last*)
from: _____
to: _____//_____//_____
First Middle Last

☐ Petitioner's legal sex is changed to: ☐ male ☐ female ☐ nonbinary
Petitioner has attested to undergoing surgical, hormonal, or other appropriate treatment for the purpose of affirming gender identity

☐ This record is ordered SEALED by the court because Petitioner is a participant in the Address Confidentiality Program under ORS 192.826

Other: _____

Judge Signature:

Certificate of Readiness per UTCR 5.100

This judgment is ready for signature because it is submitted ex parte as allowed by statute
Submitted by Petitioner

Date

Signature

Name (printed)

Address City, State, ZIP Phone